

PLUGANDPLAY

Daimler Truck North America
Anchor Corporate Membership
Agreement
Supply Chain
Plug and Play Northwest Arkansas

This Corporate Membership Agreement (“Agreement”) is made effective as of August 01, 2024 (“Effective Date”), by and between Daimler Truck North America LLC, whose principal office is located at 4555 N. Channel Avenue, Portland, OR, 97217, United States (hereinafter “CLIENT” or “Client”) and Plug & Play, LLC (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 North Wolfe Road, Sunnyvale, CA, 94085, United States (hereinafter “Plug and Play”). Plug and Play and CLIENT hereinafter jointly referred to as the “Parties” and individually to as the “Party.”

1. The Scope of the Agreement

1.1. CLIENT is seeking a deeper engagement with Plug and Play to drive business growth opportunities for CLIENT through partnership, pilots, acquisition, or investment in startups and establish CLIENT as an innovation leader in the Supply Chain and Mobility space. To ensure CLIENT’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Anchor Membership—Plug and Play Supply Chain Northwest Arkansas

1.2.1. The execution of the Agreement will grant CLIENT a status of Anchor Member of Supply Chain at Plug and Play Northwest Arkansas.

1.2.2. As an Anchor Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2.

2. Anchor Benefits—Plug and Play Supply Chain Northwest Arkansas

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Supply Chain industry (the "Supply Chain Program"). As an Anchor Member, CLIENT will receive the following:

2.1. Committee Member: CLIENT will occupy one (1) position on the Advisory Committee (a "Committee Member") in the Supply Chain Program. The "Advisory Committee" consists of the Committee Members from all Founding Anchor Members and Anchor Members of the Supply Chain Program that will guide the trajectory of the Supply Chain Program.

2.2. Program Focus: CLIENT, as a Committee Member, will have the opportunity to set the technology focus and application call for the Supply Chain Program.

2.3. Elite List: Plug and Play will complete the initial review and vetting of the applications to select a list of qualified startups to be considered for admittance into the upcoming Batch (the “Elite List”) of the Supply Chain Program. Committee Members will receive the Elite List, and from the Elite List Committee Members will vote to select startups to be reviewed at Selection Day.

- 2.4.** Selection Day: CLIENT, as a Committee Member, will review the startups selected to pitch at Selection Day and vote to select startups to admit to the Supply Chain Program along with other Committee Members ("Selection Day").
- 2.5.** Guaranteed Selection: CLIENT, as a Committee Member, may choose one (1) startup from Selection Day to admit into each batch of the Supply Chain Program.
- 2.6.** EXPOs: "EXPO" takes place at the conclusion of each Batch of each Program, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities. CLIENT may send representatives to attend EXPO may receive one three to five-minute speaking slot. Plug and Play may grant longer speaking engagements depending on topic and speaker.
- 2.7.** Sourcing and Startup Introductions
 - 2.7.1.** Private Dealflow Sessions: Plug and Play will facilitate private introductions between CLIENT and startups based on CLIENT's business challenges. These connections are made through "Dealflow Sessions"—up to six per Segment. Dealflow Sessions are structured as follows:
 - a)** CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to four startups during the Dealflow Session.
 - b)** At the Dealflow Session, each of the selected startups will present to CLIENT, followed by open discussions between the selected startups and CLIENT.
 - c)** If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.
 - 2.7.2.** Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).

2.7.3. Playbook: During the Term, CLIENT may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. CLIENT's representatives that wish to use Playbook must first create a profile on the Playbook platform.

2.8. Events & Workshops

CLIENT's marketing and business development representatives are invited to participate and promote CLIENT's brand and products at all Supply Chain events and workshops. Plug and Play will provide:

2.8.1. Community Events: During the Term, Plug and Play will host events to build community within the innovation ecosystem focused on exposure between members of the Supply Chain Program, members of other programs, and startups. CLIENT may attend any community event during the Term.

2.8.2. Internal Events: Plug and Play will invite CLIENT to regular internal events during the Term, including, but not limited to, workshops, conferences, and roundtable discussions in the Supply Chain industry. Plug and Play may invite CLIENT to internal events relating to other industries in Plug and Play's sole discretion.

2.8.3. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT may attend any FPS either virtually or in-person.

2.9. Community, Branding, and Marketing

2.9.1. Public Relations: CLIENT and Plug and Play will work together to submit a mutually agreeable press release announcing the collaboration. Additionally, this collaboration will be promoted at Plug and Play's events and in event materials, including, but not limited to, event room screens, event programs, and pop-up banners.

2.9.2. Branding in Silicon Valley: A CLIENT placard will be positioned on Plug and Play's strategic member wall at its Silicon Valley headquarters. Plug and Play will also note CLIENT as a member on its website.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

- 3.1.** As a condition of this Agreement, CLIENT hereby authorizes Plug and Play the right to use its logos and trademarks (“Marks”) in the following manner:
- A sign on the strategic member wall at Plug and Play’s facility.
 - A sign on the Supply Chain wall at Plug and Play.
 - Event materials including, but not limited to, event room screens, event programs, and pop-up banners.
 - Inclusion of CLIENT’s name and logo on Plug and Play’s website (www.plugandplaytechcenter.com).
- 3.2.** CLIENT shall be given the opportunity to review Plug and Play’s use of any such Marks prior to any public display. In any other instance, Plug and Play will ask for written permission from CLIENT to use the Marks, which shall not be unreasonably withheld. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play.
- 3.3.** CLIENT may use and publish Plug and Play’s name, logo and trademarks (“Plug and Play Marks”) in its marketing and promotional material with Plug and Play’s prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by CLIENT.

4. Intellectual Property

- 4.1.** Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT and a technology startup company introduced to CLIENT through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2.** If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties’ mutual understanding about ownership of any developments.

5. Confidentiality

The Parties have entered into a Confidentiality and Non-Disclosure Agreement concurrently with this Agreement, attached to and incorporated in this Agreement as Exhibit B.

6. Indemnity

Each Party shall defend, indemnify and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the “Indemnified Parties”), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys’ fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as “Claims”) which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to any of the Services performed or accepted by each Party under this Agreement

7. Limitation of Liability

Except for the indemnification obligations above, the liability for either Party under this Agreement shall be limited to the total amount of fees paid by Client to Plug and Play and in no event shall either Party be liable to the other Party for any special, incidental, punitive, or consequential damages.

8. Term and Billing

See **Exhibit A: Fee Schedule** attached to and incorporated in this Agreement for details.

9. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

10. Notices

Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC
Attention:
Address: 440 North Wolfe Road,
Sunnyvale, CA, 94085, United States
Email:

Daimler Truck North America LLC
Attention:
Address: 4555 N. Channel Avenue,
Portland, OR, 97217, United
Email:

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date.

14. Choice of Law

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of Delaware without application of its conflict of law or choice of law rules.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other Party.

16. Representations and Warranties

The Parties executing this Agreement on behalf of Plug and Play and CLIENT represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

17. Other

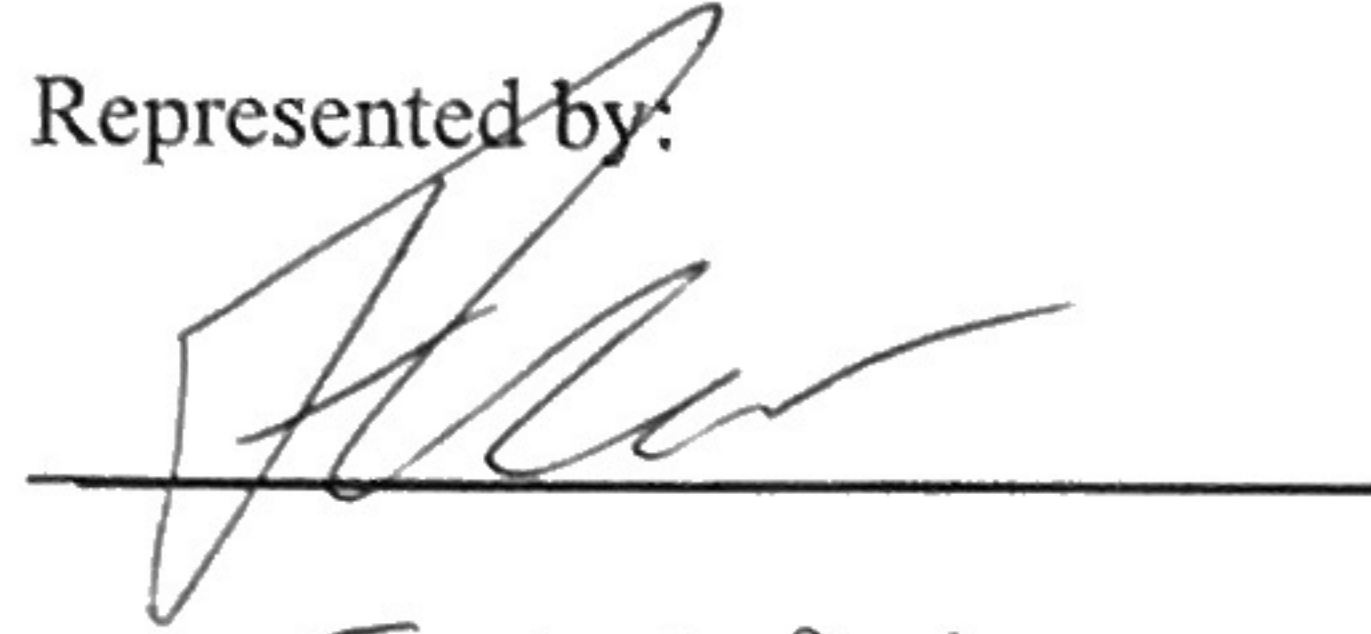
Neither Party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

(Signature page follows)

Acknowledged, Accepted and Agreed:

Plug & Play, LLC

Represented by:



Name: Frederik Bohn

Title: Sr. Director

Date: August 21, 2024

Daimler Truck North America LLC

Represented by:



Name: Dustin Hull

Title: Finance Manager, Connectivity Service Group

Date: Aug. 19, 2024

Sanjiv Khurana

SANJIV KHURANA

GM, Connectivity Services Group

August 9, 2024

Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Anchor Membership (Supply Chain) - Segment 1	USD \$350,000.00	Start Date: August 01, 2024 End Date: July 31, 2025
Anchor Membership (Supply Chain) - Segment 2	USD \$350,000.00	Start Date: August 01, 2025 End Date: July 31, 2026
Anchor Membership (Supply Chain) - Segment 3	USD \$350,000.00	Start Date: August 01, 2026 End Date: July 31, 2027

Term, Billing, and Tax:

The term of this Agreement shall commence on the Effective Date and shall continue until June 30, 2027 (the “Term”). Each 12-month period of the Term commencing on August 01 is a “Segment.”

Either Party may terminate this Agreement (the “Non-Breaching Party”) for the other Party’s material breach (the “Breaching Party”) of this Agreement by providing the Breaching Party written notice of the material breach. The Breaching Party shall have 90 days to cure such material breach, and if the Breaching Party fails to cure such material breach during the notice period, the Non-Breaching Party may terminate this Agreement. As used in this paragraph, “material breach” means (i) CLIENT’s failure to pay invoices when due, (ii) the insolvency or bankruptcy of either Party including becoming the subject matter of any proceeding relating to its bankruptcy, insolvency, receivership, liquidation, dissolution, winding up or entering into a plan of arrangement or similar agreement with its creditors, or (iii) failure by Plug and Play to continue the Program.

CLIENT may terminate this Agreement effective at the end of each Segment by providing Plug and Play with written notice of its intent to terminate no later than 90 days prior to the end of the then-current Segment. Early termination of this Agreement by CLIENT shall not entitle CLIENT to any refund of fees previously paid nor shall it release CLIENT from the obligation to pay fees that were previously invoiced pursuant to the Fee Schedule above but remain unpaid as of the effective date of CLIENT’s early termination.

Plug and Play will invoice CLIENT on the first date of each Segment listed above, in the amount designated for that Segment. Payments made under this Agreement are made in United States Dollars, in advance, and are not refundable. CLIENT shall pay Plug and Play no later than 45 days after receipt of an invoice from Plug and Play. Failure of CLIENT to pay any amount when due may result in a late penalty commencing on the due date of such payment until the date paid at a rate of 1.5% per month (18% per annum), or the maximum amount allowed by law, whichever is less.

All amounts payable under the Agreement are exclusive of any taxes or other government charges incurred by Plug and Play as a result of provision of the services to CLIENT pursuant to the Agreement. CLIENT will pay any and all (a) sales, use, excise or other taxes (other than taxes measured on the income of Plug and Play) and (b) regulatory fees or surcharges of all governmental authorities, applicable to the services provided to CLIENT under this Agreement.

Exhibit B: Confidentiality and Non-Disclosure Agreement